

26STCV17841 26STCV17841

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Case Number: 26STCV17841 Hearing Date: September 3, 2026 Dept: 510

No.

15 - Malachi James McGee v. Keith T. Laidley, et al.

Defendants

Keith T. Laidley and Pierpont Milton Laidley Trust's Motion to Quash Service of Summons

Defendants

Keith T. Laidley and Pierpont Milton Laidley Trust separately move to quash service of summons by Plaintiff Malachi James McGee. "[O]nce a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant." (Bolkiah v. Superior Court (1999) 74 Cal.App.4th 984, 991.)

Plaintiff does not meet his burden to show

valid service on Defendants. There are three proofs of service filed with the Court. The first proof of service was filed on June 22, 2026. It indicates personal service on Keith T. Laidley and Ana Laidley on June 8, 2026. The second and third proofs of service were filed after Defendants filed their motions to quash. The second proof of service indicates service on party "Robin Chow" via personal service on August 10, 2026, and substitute service on Keith T. Laidley and Ana Laidley on June 8, 2026. The third proof of service indicates personal service of the complaint and other documents on "Robin Chow."

First, there is no valid proof of service

showing proper service on Defendant Pierpont Milton Laidley Trust. To serve a trust, Plaintiff must identify and serve the trustee in his or her

representative capacity. (See Prob. Code, § 18004; CCP § 416.90.) Plaintiff has not identified any trustee. Robin Chow is counsel for Defendants. Service on counsel is not sufficient to constitute personal service on a trustee. In addition, it is unclear if either Keith T. Laidley or Ana Laidley are trustees. Plaintiff does not provide any clarity in his opposition brief.

Second, for service on Defendant Keith T.

Laidley, Defendant denies that he was ever personally served the summons and complaint on June 8, 2026. Keith T. Laidley attests that he was not present at his residence when service was effected on his wife, on his behalf. (Keith Laidley Decl., ¶ 4.) Ana Laidley attests “Keith T. Laidley was not present at the residence when the server arrived on June 8, 2026. The server did not ask me whether Keith T. Laidley was available or when he would be available.” (Ana Laidley Decl., ¶ 4.) Therefore, it is Plaintiff’s burden to prove the validity of the personal service on Keith Laidley.

Plaintiff does not meet this burden. His opposition largely addresses jurisdictional matters that are not at issue here. Also, the opposition brief and accompanying declaration are unsigned by Plaintiff.

This service also does not resemble valid substitute service on Defendant Keith Laidley. Under Code of Civil Procedure section 415.20(b), “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office . . . and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.”

Plaintiff presented no evidence that he exercised reasonable diligence before resorting to substitute service. “‘[R]easonable diligence’... denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney.” (Kott v. Superior Court (1996) 45 Cal.App.4th 1126, 1137.) “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies

as reasonable diligence.” (Rodriguez v. Cho (2015) 236 Cal.App.4th 742, 750, internal quotes omitted.) There is no declaration showing reasonable diligence.

Plaintiff also did not present evidence that he mailed copies of the summons and complaint to the person to be served at the place where the summons and complaint were left. There is no declaration of mailing.

Disposition

Defendants

Keith T. Laidley and Pierpont Milton Laidley Trust’s motions to quash service of summons are granted. The Court hereby quashes service of summons on Defendants Keith T. Laidley and Pierpont Milton Laidley Trust.